

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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RAFAEL SOSA,

Plaintiff,

--against--

THE CITY OF NEW YORK, POLICE OFFICER BEKIM
KALIKOVIC and JOHN DOES-Police Officers as yet
unidentified,

Defendants,

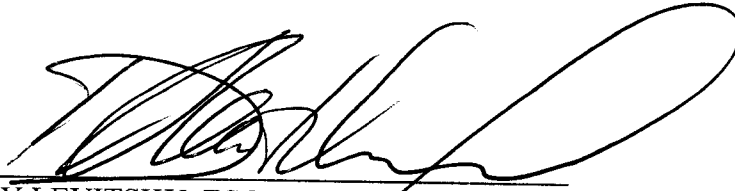
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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

JURY TRIAL DEMANDED

Dated: Brooklyn, New York
August 26, 2017



DMITRY LEVITSKY, ESQ.
LEVITSKY LAW FIRM
Attorneys for Plaintiff
RAFAEL SOSA
3171 Coney Island Avenue 2nd Floor
Brooklyn, NY 11235
(347) 462-1660
Our File No.: DL00253

To:

THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

POLICE OFFICER BEKIM KALIKOVIC
c/o New York City Police Department- 13th Precinct
230 East 21st Street
New York, New York 10010

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

-----X
RAFAEL SOSA,

Plaintiff,

Index No.:

Date Purchased:

--against--

COMPLAINT

THE CITY OF NEW YORK, POLICE OFFICER BEKIM
KALIKOVIC and JOHN DOES-Police Officers as yet
unidentified,

Defendants,

-----X
Plaintiff, by his attorneys, LEVITSKY LAW FIRM, complaining of the Defendants,
respectfully alleges, upon information and belief, as follows:

**AS AND FOR A FIRST CAUSE OF ACTION FOR ASSAULT AND BATTERY ON BEHALF
OF THE PLAINTIFF, RAFAEL SOSA**

1. That at the time of the commencement of this action, Plaintiff resided in the
County of New York, City and State of New York.

2. That all times hereinafter mentioned, the defendant, **THE CITY OF NEW
YORK**, was and still is a municipal corporation, duly organized and existing pursuant to the
laws of the State of New York.

3. That the defendant, **THE CITY OF NEW YORK**, maintains a police force
known as the NEW YORK CITY POLICE DEPARTMENT.

4. That prior hereto on August 30, 2016, and within the time prescribed by law, a
sworn Notice of Claim stating, among other things, the time when and place where the injuries
and damages were sustained, together with plaintiff's demands for adjustment or payment

thereof, and that thereafter **THE CITY OF NEW YORK** refused or neglected for more than (30) days and up to the commencement of this action to make any adjustment or payment thereof, and that thereafter, and within the time provided by law, this action was commenced.

5. Pursuant to the General Municipal Law, the Statutory 50-H hearing of plaintiff was held on November 29, 2016.

6. That on June 11, 2016, and at all times hereinafter mentioned and upon information and belief, defendant, **THE CITY OF NEW YORK**, employed **POLICE OFFICER BEKIM KALIKOVIC** and **JOHN DOES-Police Officers** as yet unidentified, as agents, servants and/or employees.

7. That on June 11, 2016, and at all times hereinafter mentioned and upon information and belief, the plaintiff, **RAFAEL SOSA**, was lawfully present at or about the premises known as Second Avenue, between East 18th and 19th Street, County of New York, City and State of New York.

8. That on June 11, 2016, and at all times hereinafter mentioned and upon information and belief, the plaintiff, **RAFAEL SOSA**, was assaulted and battered by defendants, **POLICE OFFICER BEKIM KALIKOVIC** and **JOHN DOES-Police Officers** as yet unidentified, who were acting within the scope of their employment with the defendant, **THE CITY OF NEW YORK**, at the aforesaid premises.

9. That on June 11, 2016, and at all times hereinafter mentioned and upon information and belief, the aforementioned assault and battery was performed knowingly, intentionally and willfully.

10. That on June 11, 2016, and at all times hereinafter mentioned and upon information and belief the defendants, **POLICE OFFICER BEKIM KALIKOVIC** and **JOHN**

DOES-Police Officers as yet unidentified, who committed the aforementioned assault and battery upon the plaintiff, **RAFAEL SOSA**, were acting within the scope of their employment with the defendant, **THE CITY OF NEW YORK**.

11. That on June 11, 2016, and at all times hereinafter mentioned and upon information and belief, the assault and battery on the plaintiff was without probable cause and was not the result of an appropriate arrest.

12. By reason of said assault and battery the plaintiff was caused to suffer severe and serious injuries in and about diverse parts of the person, and suffered great pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

13. By the reason of the foregoing, the plaintiff, **RAFAEL SOSA**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SECOND CAUSE OF ACTION FOR NEGLIGENT HIRING AND
RETENTION ON BEHALF OF THE PLAINTIFF, RAFAEL SOSA**

14. Plaintiff, repeats and re-alleges each and allegations contained in the paragraphs of the complaint marked and designated "1" through "13" with full force and effect.

15. That defendant, **THE CITY OF NEW YORK**, did not exercise reasonable care and diligence in the selection, engagement, employment and training of their agents, servants, and employees and were negligent in the hiring, training and retention of the defendants **POLICE OFFICER BEKIM KALIKOVIC** and **JOHN DOES-Police Officers** as yet unidentified, who assaulted, battered and violated the civil rights of the plaintiff, **RAFAEL SOSA**.

16. That the defendant, **THE CITY OF NEW YORK**, had prior knowledge of the inappropriate, unlawful, and improper conduct of the defendants, **POLICE OFFICER BEKIM**

KALIKOVIC and JOHN DOES-Police Officers as yet unidentified, and continued to employ them and allowed them to be in contact with the public at large.

17. By the reason of the foregoing, the plaintiff, **RAFAEL SOSA**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A THIRD CAUSE OF ACTION FOR FALSE ARREST OF THE
PLAINTIFF, RAFAEL SOSA**

18. Plaintiff, repeats and re-alleges each and allegations contained in the paragraphs of the complaint marked and designated "1" through "17" with full force and effect.

19. That on June 11, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER BEKIM KALIKOVIC and JOHN DOES-Police Officers** as yet unidentified, were working within the scope of their employment and authority with defendant, THE CITY OF NEW YORK, when they arrested and confined the plaintiff, **RAFAEL SOSA**.

20. That on June 11, 2016, and at all times hereinafter mentioned and upon information and belief, the arrest and confinement was without probable cause nor based on reasonable grounds and not founded upon an arrest warrant.

21. That as a result of the aforesaid false arrest and confinement, plaintiff, **RAFAEL SOSA**, sustained serious permanent personal injuries along with humiliation, shame, indignity, damage to reputation and credit and suffered emotional and physical distress and injuries.

22. By the reason of the foregoing, the plaintiff, **RAFAEL SOSA**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FOURTH CAUSE OF ACTION FOR FALSE IMPRISONMENT OF
THE PLAINTIFF, RAFAEL SOSA**

23. Plaintiff, repeats and re-alleges each and allegations contained in the paragraphs of the complaint marked and designated "1" through "22" with full force and effect.

24. That on June 11, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER BEKIM KALIKOVIC** and **JOHN DOES-Police Officers** as yet unidentified, were acting within the scope of their employment when they, without justification and without probable cause, imprisoned the plaintiff.

25. That defendants, **POLICE OFFICER BEKIM KALIKOVIC** and **JOHN DOES-Police Officers** as yet unidentified, while acting within the scope of their employment, intentionally confined the plaintiff against his will and said confinement was not privileged.

26. By the reason of the foregoing, the plaintiff, **RAFAEL SOSA**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A FIFTH CAUSE OF ACTION FOR INTENTIONAL AND NEGLIGENT
INFLICTION OF EMOTIONAL DISTRESS ON BEHALF OF THE PLAINTIFF,
RAFAEL SOSA**

27. Plaintiff, repeats and re-alleges each and allegations contained in the paragraphs of the complaint marked and designated "1" through "27" with full force and effect.

28. The defendant, **THE CITY OF NEW YORK**, including but not limited to **POLICE OFFICER BEKIM KALIKOVIC** and **JOHN DOES-Police Officers** as yet unidentified, acted intentionally, recklessly and with utter disregard to the consequences of their actions and caused severe emotional distress to the plaintiff through their actions.

29. Said actions exceeded all reasonable bounds of decency, were outrageous and shocking and resulted in severe emotional distress to the plaintiff, **RAFAEL SOSA**.

30. That as a result of said intentional and negligent acts, the plaintiff, **RAFAEL SOSA**, become sick, sore, lame and disabled, received severe and serious injuries in and about

diverse parts of his person and suffered great physical pain, distress, mental shock, mental anguish and psychological trauma and was otherwise injured.

31. By reason of the foregoing, the plaintiff, **RAFAEL SOSA**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A SIXTH CAUSE OF ACTION FOR MALICIOUS
PROSECUTION ON BEHALF OF THE PLAINTIFF, RAFAEL SOSA**

32. Plaintiff, repeats and re-alleges each and allegations contained in the paragraphs of the complaint marked and designated "1" through "31" with full force and effect.

33. That on June 11, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER BEKIM KALIKOVIC** and **JOHN DOES-Police Officers** as yet unidentified, within the scope of their employment, without justification, without probable cause, created and submitted an erroneous police report in an effort to cover up the aforesaid and initiate a prosecution in bad faith.

34. That on June 11, 2016, and at all times hereinafter mentioned and upon information and belief, defendants, **POLICE OFFICER BEKIM KALIKOVIC** and **JOHN DOES-Police Officers** as yet unidentified, were acting within the scope of their employment, maliciously prosecuted the plaintiff.

35. That on June 11, 2016, and at all times hereinafter mentioned and upon information and belief, as a result of the aforesaid malicious prosecution, plaintiff sustained serious, permanent, personal injuries along with humiliation, shame, indignity, damage to reputation and credit, legal fees, loss of employment opportunities and suffered emotional and physical distress and injury.

36. By reason of the foregoing, plaintiff, **RAFAEL SOSA**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

AS AND FOR A SEVENTH CAUSE OF ACTION FOR CIVIL RIGHTS VIOLATION
ON BEHALF OF THE PLAINTIFF, RAFAEL SOSA

37. Plaintiff, repeats and re-alleges each and allegations contained in the paragraphs of the complaint marked and designated “1” through “36” with full force and effect.

38. The defendant, **THE CITY OF NEW YORK**, including but not limited to **POLICE OFFICER BEKIM KALIKOVIC** and **JOHN DOES-Police Officers** as yet unidentified, were acting under the color of law and within the scope of their authority, assaulted, battered, falsely arrested and falsely imprisoned the plaintiff, **RAFAEL SOSA**, in violation of 42 U.S.C.A. section 1983 as well as other applicable state and federal laws.

39. The defendant, **THE CITY OF NEW YORK**, including but not limited to **POLICE OFFICER BEKIM KALIKOVIC** and **JOHN DOES-Police Officers** as yet unidentified, acting under color of law and within the scope of their authority, deprived the plaintiff, **RAFAEL SOSA**, of liberty without due process and without reasonable cause in violation of 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

40. The defendants had deprived the plaintiff by their actions of his civil rights as guaranteed by statute.

41. That the assault, battery, false arrest and false imprisonment was in violation of the civil rights of the plaintiff, more particularly, 42 U.S.C.A. Section 1983 as well as other applicable state and federal laws.

42. That the deprivation by the defendants of plaintiff's civil rights was a result of said defendant, **THE CITY OF NEW YORK**, including but not limited to **POLICE OFFICER**

BEKIM KALIKOVIC and **JOHN DOES-Police Officers** as yet unidentified, acting under color of law and within their authority as law enforcement officers within the employ of defendants, **THE NEW YORK CITY POLICE DEPARTMENT**.

43. That the defendants' actions were not privileged or immune.

44. That the defendant, **THE CITY OF NEW YORK**, including but not limited to **POLICE OFFICER BEKIM KALIKOVIC** and **JOHN DOES-Police Officers** as yet unidentified, were not acting with immunity when they deprived plaintiff of his civil rights.

45. By the reason of the foregoing, the plaintiff, **RAFAEL SOSA**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

**AS AND FOR A EIGHT CAUSE OF ACTION FOR PUNITIVE DAMAGES ON
BEHALF OF THE PLAINTIFF, RAFAEL SOSA**

46. Plaintiff, repeats and re-alleges each and allegations contained in the paragraphs of the complaint marked and designated "1" through "45" with full force and effect.

47. The actions of the defendants herein-above alleged, were malicious, willful and grossly negligent.

48. The defendant, **THE CITY OF NEW YORK**, authorized, permitted and ratified the unlawful and negligent acts of their agents, servants and/or employees, including but not limited to **POLICE OFFICER BEKIM KALIKOVIC** and **JOHN DOES-Police Officers** as yet unidentified, herein-above alleged.

49. By the reason of the foregoing, the plaintiff, **RAFAEL SOSA**, sustained damages in an amount exceeding the jurisdictional limits of all the lower Courts.

WHEREFORE, plaintiff, **RAFAEL SOSA**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **First**

Cause of Action; plaintiff, **RAFAEL SOSA**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Second**

Cause of Action; plaintiff, **RAFAEL SOSA**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Third**

Cause of Action; plaintiff, **RAFAEL SOSA**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fourth**

Cause of Action; plaintiff, **RAFAEL SOSA**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Fifth**

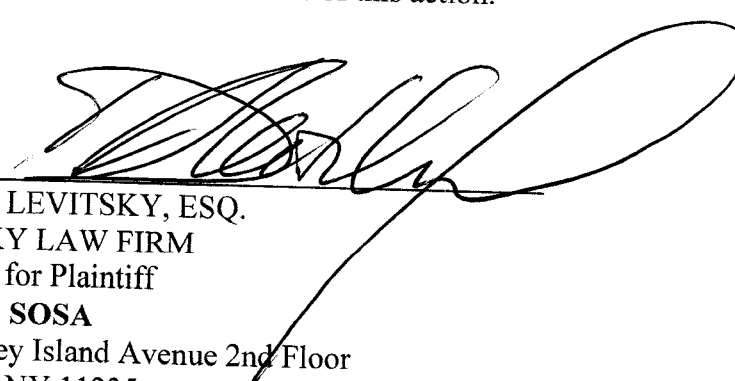
Cause of Action; plaintiff, **RAFAEL SOSA**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Sixth**

Cause of Action; plaintiff, **RAFAEL SOSA**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Seventh**

Cause of Action; plaintiff, **RAFAEL SOSA**, demands judgment both compensatory and exemplary in an amount exceeding the jurisdictional limits of all lower Courts on the **Eighth**

Cause of Action; together with attorneys' fees, and the costs and disbursements of this action.

Dated: Brooklyn, New York
August 26, 2017



DMITRY LEVITSKY, ESQ.
LEVITSKY LAW FIRM
Attorneys for Plaintiff
RAFAEL SOSA
3171 Coney Island Avenue 2nd Floor
Brooklyn, NY 11235
(347) 462-1660
Our File No.: DL00253

ATTORNEY'S VERIFICATION

DMITRY LEVITSKY, ESQ. , an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at LEVITSKY LAW FIRM, attorneys of record for Plaintiff, **RAFAEL SOSA**. I have read the annexed **COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not Plaintiff(s) is that Plaintiff(s) is/are not presently in the county wherein the attorneys for the plaintiff(s) maintain their offices.

DATED: Brooklyn, New York
August 26, 2017



DMITRY LEVITSKY, ESQ.